

Factum of the Appellant

Style of cause	James Chadwick Rankin, carrying on business as Rankin's Garage & Sales v. J.J. by his Litigation Guardian, J.A.J., et al.
Court	Supreme Court of Canada, file 37323
Document	Factum of the Appellant, the appellant, signed 2017-06-05, 42 PDF pages
Matter	rankin-appeal
Prepared for	a sample run on a public filing
Prepared by	Edward, an AI employee, for a lawyer's review
Checked on	2026-09-13, against the sources as they stood that day
Publication ban	(Publication ban in case) (Publication ban on party) (Certain information not available to the public). This page repeats only what the court publishes. Check the terms of the order before circulating anything drawn from it outside the firm.
Judgment appealed from	J.J. v. C.C., 2016 ONCA 718, reversed after this document was filed by Rankin (Rankin's Garage & Sales) v. J.J., 2018 SCC 19 (Gascon and Brown JJ. dissent). It is reported here, not as a flag; if this document is reused, the later decision governs.

Sample run on a public filing. No client, no privilege.

30 authorities checked. 26 cleared. 2 flagged for your attention. 2 could not be verified.

30	26	2	2
Checked	Cleared	Flagged	Unverified

Cleared: the authority exists as cited and the passage carries the point. Where one public search turned up a later decision, an amendment or a different standing in another jurisdiction, the row says so and still stands for the point it is cited for. Not a citator noting-up.

HOW THIS WAS CHECKED

- Opened.** 28 of 30 authorities, one page at a time: 18 read directly by the system at the source each row names; 10 read in a person's browser on 2026-09-11 and 2026-09-12, and each of those rows says so; 2 with no public copy. The page read and the date are printed on every row, so any row with a page re-checks in one click.
- Matched.** Every citation against the page it sits on, and every passage the document relies on against the words there, where the system read the source.
- Quoted.** Every quotation the document attributes to an authority the system read was compared with the source word for word: 10 rows carry quotations, 1 differs; 7 rows carry a quotation that was not compared at source (a page a person read, or no public copy), and each says so.
- History.** Appellate history read for every decision: 15 from the final court, 2 affirmed on appeal, 1 reversed, 8 with no appeal recorded on the source read, 2 statutes or rules checked against their amendments, the result on the row, 2 unverified.
- Pinpoints.** 9 authorities are cited with no pinpoint; Rule 42(2)(c) of the Rules of the Supreme Court of Canada asked for the tab, page and paragraph number of each authority on the document's date (the version in force from January 1, 2017 to January 14, 2019) and still does. Every such row says none given; 7 in the cleared table, 2 among the cards above it.

6. **Not done.** The citator pass. CanLII's free noting-up lists the later decisions that cite an authority; the treatment signals (KeyCite Canada on Westlaw, QuickCITE on Lexis) need the firm's own subscription: run it there on any authority you rely on. This check does not.

The method, step by step, is at the end of this page.

Read these first

The filing uses Hill wording but sends the reader to Cooper for the quoted words.

6. Cooper v. Hobart, 2001 SCC 79

Misquoted. Cited at paragraphs 46, 54, 57. Pinpoint: paras. 25 and 29 to 39; para. 34; para. 35. The paragraph 57 quotation is Hill para. 24, not Cooper para. 34.

Cited for: The source supplies the Anns and Cooper method and the proximity factors of expectations, representations, reliance, and property or other interests.

Read the Supreme Court of Canada pages for Cooper para. 34 and Hill para. 24. The factum para. 57 quotation introduced as Hill wording and footnoted to Cooper para. 34 is Hill para. 24 wording; Cooper para. 34 supports the same proximity factors without being the quoted source.

The document quotes: para. 57(a): "...the relationship at issue, considering factors such as expectations, representations, reliance and property or other interests involved" (footnote 59: Cooper v. Hobart, 2001 SCC 79, at para. 34)

At the place the footnote sends the reader: Cooper, para. 34: "Defining the relationship may involve looking at expectations, representations, reliance, and the property or other interests involved. Essentially, these are factors that allow us to evaluate the closeness of the relationship between the plaintiff and the defendant and to determine whether it is just and fair having regard to that relationship to impose a duty of care in law upon the defendant."

Where the words are: Hill, para. 24: "Generally speaking, the proximity analysis involves examining the relationship at issue, considering factors such as expectations, representations, reliance and property or other interests involved: Cooper, at para. 34."

What to do: Correction: Hill, at para. 24, citing Cooper, at para. 34. At factum para. 46, footnote 46 names Cooper with no pinpoint and sits immediately before the quotation, while footnote 45 carries the attribution to Childs para. 15, so a reader may take the quotation as Cooper wording.

Final court; the proximity framework remains part of Canadian duty analysis, subject to later refinements.

Read by the system on 2026-09-13 at <https://decisions.scc-csc.ca/scc-csc/scc-csc/en/item/1920/index.do?iframe=true> (Supreme Court of Canada, decisions site).

The authority exists and carries the point, but the table sends the reader to a footnote number instead of the paragraph where the case is used.

15. Horsley v. MacLaren, [1972] S.C.R. 441

Citation error. Cited at paragraph 79. Pinpoint: none given. The table gives footnote 77's number instead of the citing paragraph 79.

Cited for: A boat owner and operator may owe a duty to attempt rescue of a passenger who falls overboard.

Read the Supreme Court of Canada old report page for Horsley, including the headnote on rescue after an invited guest fell overboard. The factum's table of authorities heads its number column Para.:

Anns is indexed at 54 and discussed at para. 54, Cooper is indexed at 46, 54 and 57 and cited there; Horsley's entry reads 77, which is the footnote marker, while the case is cited at para. 79.

What to do: Correction: in the table entry for Horsley, use para. 79.

Canadian final court decision from before neutral citations; one public search found no later decision changing the boat rescue duty point. The table's entry points at paragraph 77, where the authority is not cited.

Read by the system on 2026-09-13 at <https://decisions.scc-csc.ca/scc-csc/scc-csc/en/item/2702/index.do?iframe=true> (Supreme Court of Canada, decisions site).

Could not be verified

17. Kalogeropoulos v. Ottawa, [1996] O.J. No. 3449 (C.J.)

Cited at paragraph 48. Pinpoint: none given.

No public copy reached. Factum paras. 48 and 51 and footnote 49 were checked. The O.J. No. citation was not publicly reached. Ontario e-Laws was read for the Courts of Justice Act, R.S.O. 1990, c. C.43: s. 11 was amended effective April 19, 1999 to continue the Ontario Court (General Division) as the Superior Court of Justice, so a 1996 superior trial decision belonged to the Ontario Court (General Division), abbreviated (Gen. Div.) (Courts of Justice Act, R.S.O. 1990, c. C.43, s. 11, read by the system on 2026-09-13 at <https://www.ontario.ca/laws/statute/90c43>; the amendment 1996, c. 25, s. 9(1), in force April 19, 1999). (C.J.) may also be a reporter's shorthand for the Ontario Court of Justice, the umbrella court of the period, whose General Division heard superior trial matters; the copy at [ABOA Tab 1] settles it.

Where it lives: An O.J. No. is a Quicklaw citation on Lexis; the factum footnote 49 puts a copy at [ABOA Tab 1].

What to do: Look on Lexis for [1996] O.J. No. 3449 and at [ABOA Tab 1]; if the decision is the 1996 superior trial decision, use (Gen. Div.) rather than (C.J.).

30. Canadian Negligence Law (1972), at pp. 33 to 34

Cited at paragraph 117. Pinpoint: pp. 33 to 34.

No public copy reached. The original treatise pages were not publicly reached, so the treatise words were not compared at source. The Ryan report reproduces the passage, and the Revised Statutes of Ontario 1970 copy at <https://archive.org/details/v2revisedstatute1970ontauoft> was read on 2026-09-13 for Highway Traffic Act, R.S.O. 1970, c. 202, s. 18: the 15 or 16 wording is Professor Linden's wording, s. 18 set sixteen for driving or operating a motor vehicle or farm tractor on a highway, s. 18(3) excepted a farm tractor driven or operated directly across a highway, so the quotation is consistent with the reproduction in Ryan and with the statute it describes; it was not compared with the treatise itself.

Where it lives: Canadian Negligence Law (1972), pp. 33 to 34; check the book or any book of authorities copy supplied for the appeal.

What to do: Check the passage against the book, or against the copy in the book of authorities if one was supplied.

Cleared

Authority, as the document cites it	Cited at	Pinpoint	Worth a look	Source
1. Anns v. Merton London Borough Council, [1978] A.C. 728 (H.L.)	paragraph 54	none given	Departed from in England by Murphy v. Brentwood District Council, [1991] 1 A.C. 398 (H.L.); kept in Canada as restated in Kamloops and Cooper (Cooper, 2001 SCC 79, paras. 21 to 25).	Read in a person's browser on 2026-09-12 at https://www.bailii.org/uk/cases/UKHL/1977/4.html (BAILII).
2. British Columbia v. Zastowny, 2008 SCC 4	paragraphs 120, 122, 125	paras. 23 to 30, especially para. 30	Final court; one public search found no later decision changing the ex turpi point used here.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/scc-csc/en/item/2402/index.do?iframe=true (Supreme Court of Canada, decisions site).
3. Campiou Estate v. Gladue, 2002 ABQB 1037 (CanLII)	paragraphs 6, 92, 106, 111	para. 44	Worth a look: add factum para. 111 to the Campiou table entry if the table is updated. Alberta trial decision; the public history read recorded no appeal.	Read in a person's browser on 2026-09-12 at https://www.canlii.org/en/ab/abqb/doc/2002/2002abqb1037.html (CanLII).
4. Canadian Pacific Ltd. v. Swift Current No. 137 (Rural Municipality) and Ens, 1991 CanLII 7750 (SK QB)	paragraphs 68, 112, 128, 132, 137	para. 1; paras. 32 to 33; p. 401	Worth a look: the electronic copy supports the passage at paras. 32 to 33; p. 401 is a printed page reference. Saskatchewan trial decision affirmed by Canadian Pacific Ltd. v. Swift Current No. 137 (Rural Municipality) and Ens, 1992 CanLII 8323 (SK CA).	Read in a person's browser on 2026-09-12 at https://www.canlii.org/en/sk/skqb/doc/1991/1991canlii7750/1991canlii7750.html

5. Childs v. Desormeaux, 2006 SCC 18	paragraphs 45, 46, 61, 63, 66, 75, 82, 84	paras. 11, 15, 28 to 29, 35 to 37 and 40	Final court; one public search found no later decision changing the positive duty categories used here.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/scc-csc/en/it em/3/index.do?iframe=true (Supreme Court of Canada, decisions site).
7. Crocker v. Sundance Northwest Resorts Ltd., [1988] 1 S.C.R. 1186	paragraph 79	none given	Canadian final court decision from before neutral citations; one public search found no later decision changing the event operator duty point.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/scc-csc/en/it em/349/index.do?iframe=true (Supreme Court of Canada, decisions site).
8. Doe v. Metropolitan Toronto (Municipality) Commissioners of Police, 1998 CanLII 14826 (ON SC)	paragraph 83	none given	Ontario trial decision; the public history read recorded no appeal from the 1998 judgment.	Read in a person's browser on 2026-09-11 at https://www.canlii.org/en/on/onsc/doc/1998/1998canlii14826/1998canlii14826.html (CanLII).
9. Edwards v. Law Society of Upper Canada, 2001 SCC 80	paragraph 54	para. 9	Final court; one public search found no later decision changing the foreseeability plus proximity point.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/

[scc-csc/en/it-em/1921/index.do?iframe=true](https://www.scc-csc/en/it-em/1921/index.do?iframe=true)
(Supreme Court of Canada, decisions site).

10. Fullowka v. Pinkerton's of Canada Ltd., 2010 SCC 5	paragraph 74	para. 27	Worth a look: factum para. 74 uses Respondent in a sentence about defendant conduct; the source point is defendant conduct. Final court; one public search found no later decision changing the positive duty point.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/scc-csc/en/it-em/7844/index.do?iframe=true (Supreme Court of Canada, decisions site).
11. Fullowka v. Royal Oak Ventures Inc., 2008 NWTCA 4	paragraphs 132, 134	paras. 69 to 70	Worth a look: add affd 2010 SCC 5 beside the Royal Oak citation. Northwest Territories Court of Appeal decision; further appeal dismissed in Fullowka v. Pinkerton's of Canada Ltd., 2010 SCC 5.	Read in a person's browser on 2026-09-11 at https://www.canlii.org/en/nt/ntca/doc/2008/2008nwtca4/2008nwtca4.htm ! (CanLII).

12. Hall v. Hebert, [1993] 2 SCR 159	paragraphs 120, 123, 125	p. 182	Worth a look: add factum para. 123 to the Hall table entry if the table is updated. Canadian final court decision from before neutral citations; one public search found no later decision changing the illegal conduct point used here.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/scc-csc/en/it em/1000/index.do?iframe=true (Supreme Court of Canada, decisions site).
13. Hercules Management Ltd. v. Ernst & Young, 1997 CanLII 345 (SCC), [1997] 2 S.C.R. 165	paragraph 89	para. 24	Worth a look: the SCC page styles the party as Hercules Managements Ltd.; the factum says Hercules Management Ltd. Final court; one public search found no later decision changing the proximity language used here.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/scc-csc/en/it em/1511/index.do?iframe=true (Supreme Court of Canada, decisions site).
14. Hill v. Hamilton-Wentworth Regional Police Services Board, 2007 SCC 41	paragraphs 53, 56, 57, 58, 140	paras. 24, 25 and 29	Final court; one public search found no later decision changing the police proximity wording used here.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/scc-csc/en/it em/2382/index.do?iframe=true (Supreme Court of Canada, decisions site).
16. J.J. v. C.C., 2016 ONCA 718 (CanLII)	paragraphs 5, 6, 10, 11, 12, 13, 14, 15, 16, 17, 18, 20, 31,	Court of Appeal Judgment, paras. 1, 2,	Worth a look: the table entry points to para. 3, but the defined short form appears in para. 5 and later footnotes cite the decision through it. When this document is reused, address Rankin (Rankin's	Read by the system on 2026-09-13 at https://www

34, 35, 36, 37, 38, 40, 41, 42, 48, 49, 51, 60, 65, 66, 68, 96, 98, 108, 120, 121, 142, 143, 160, 161, 162	4, 6, 7, 9, 10, 11, 12, 13, 14, 15, 24, 26, 27, 28, 29, 31, 33, 38, 39, 40 to 47, 48, 50, 53, 56, 56 to 59, 64, 65, 68, 71, 72, 73, 82	Garage & Sales) v. J.J., 2018 SCC 19. Ontario Court of Appeal decision under appeal; reversed by Rankin (Rankin's Garage & Sales) v. J.J., 2018 SCC 19, with Gascon and Brown JJ. dissenting.	w.ontariocourts.ca/decisions/2016/2016ONCA0718.htm (Court of Appeal for Ontario, decisions site).
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18. Kamloops (City of) v. Nielsen, [1984] 2 S.C.R. 2	paragraphs 45, 54	pp. 10 to 11	Canadian final court decision from before neutral citations; Kamloops remains the Canadian adoption of Anns as restated in Cooper, 2001 SCC 79, paras. 21 to 25.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/en/it-scc-csc/en/it-em/2490/index.do?iframe=true (Supreme Court of Canada, decisions site).
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19. MacKay v Starbucks Corporation, 2017 ONCA 350	paragraphs 99, 104	para. 10	Worth a look: add factum para. 104 to the MacKay table entry if the table is updated. Ontario Court of Appeal decision; no appeal was found in the source materials used for this run.	Read by the system on 2026-09-13 at https://www.ontariocourts.ca/decisions/2017/2017ONCA0350.htm (Court of Appeal for Ontario, decisions site).
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20. McErlean v. Sarel et al., 1987 CanLII 4313 (ONCA)	paragraph 118	none given	Ontario Court of Appeal decision from before neutral citations; the public history read recorded no appeal.	Read in a person's browser on 2026-09-11 at https://www.canlii.org/en/on/onca/doc/1987/1987canlii4313/1987canlii
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21. Moore et al. v. Fanning et al., 1987 CanLII 4168 (ON SC)	paragraphs 68, 112, 132, 145, 146	none given	Ontario trial decision from before neutral citations; the public history read recorded no appeal.	Read in a person's browser on 2026-09-11 at https://www.canlii.org/en/on/onsc/doc/1987/1987canlii4168/1987canlii4168.html (CanLII).
22. Mustapha v. Culligan Canada Ltd, 2008 SCC 27, [2008] 2 S.C.R. 114	paragraph 36	para. 13	Remark only: if the table is updated, the table entry is the only place counsel could add of to the style of cause. Final court; one public search found no later decision changing the reasonable foreseeability point.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/en/item/4637/index.do?iframe=true (Supreme Court of Canada, decisions site).
23. Odhavji Estate v. Woodhouse, 2003 SCC 69	paragraph 54	paras. 47 to 50	Final court; one public search found no later decision changing the foreseeability plus proximity point.	Read by the system on 2026-09-13 at https://decisions.scc-csc.ca/scc-csc/en/item/2104/index.do?iframe=true (Supreme Court of Canada, decisions site).
24. R. v. Imperial Tobacco Canada Ltd., 2011 SCC 42	paragraphs 55, 56, 140	paras. 39 and 41	Final court; one public search found no later decision changing the proximity and foreseeability point.	Read by the system on 2026-09-13 at https://decisions.scc-cs

[c.ca/scc-csc/scc-csc/en/it-em/7957/index.do?iframe=true](https://www.canlii.org/en/ontario/ontario/csc/scc-csc/en/it-em/7957/index.do?iframe=true)
(Supreme Court of Canada, decisions site).

25. Ryan et al. v. Hickson et al., 1974 CanLII 871 (ON SC)	paragraph 117	none given	Ontario trial decision from before neutral citations; the public history read recorded no appeal.	Read in a person's browser on 2026-09-11 at https://www.canlii.org/en/ontario/onsc/doc/1974/1974canlii871/1.html (CanLII).
26. Spagnolo v. Margesson's Sports Ltd (1983), 41 O.R. (2d) 65 (C.A.)	paragraphs 48, 142	none given	Ontario Court of Appeal decision from before neutral citations; the public history read recorded no appeal.	Read in a person's browser on 2026-09-11 at https://www.canlii.org/en/ontario/onca/doc/1983/1983canlii1904.html (CanLII).
27. Tong v. Bedwell, 2002 ABQB 213	paragraphs 68, 69, 70, 112, 132	paras. 1 to 7 and 56 to 57	Alberta trial appeal decision; the public history read recorded no further appeal.	Read in a person's browser on 2026-09-11 at https://www.canlii.org/en/ab/abqb/doc/2002/2002abqb213/2002abqb213.html (CanLII).
28. Occupiers' Liability Act, R.S.O. 1990, c.	paragraphs 88, 95, 97, 98, 99, 100, 101,	ss. 1, 2, 3 and 4(2)	Remark only: para. 95 gives the loose sentence, and para. 105 gives the full statutory text that carries it. Ontario statute; the version read was in force from	Read by the system on 2026-09-13

O.2, ss. 1, 2, 3, 4(2)	102, 103, 104, 105, 107, 137		September 1, 2016 to May 28, 2019. Read the version in force from September 1, 2016 to May 28, 2019 against the current consolidation. Sections 1 to 4 did not change after the document date; later versions began on May 29, 2019, July 1, 2019, December 8, 2020 and January 29, 2021, but those post filing changes do not alter the sections cited.	at https://www.ontario.ca/laws/statute/90o02/v3 (Ontario e-Laws).
29. Rule 42 of the Rules of the Supreme Court of Canada	the cover or a heading, outside the numbered paragraphs	Rule 42	Federal rule; current Justice Laws text checked for Rule 42 and its post filing amendments. Rule 42 is part of the Rules of the Supreme Court of Canada, SOR/2002-156. Since the filing, SOR/2019-1, s. 7 and SOR/2024-73, s. 6 changed Rule 42; the current rule puts the table of authorities in Part VII where this document uses Part VI, and asks for paragraph numbers and hyperlinks. That is a post filing change, not an author error. On the document's date, r. 42(2)(f) as it stood from January 1, 2017 to January 14, 2019 put the table of authorities in Part VI, so the document's Part VI was the required Part when it was signed (the previous version at https://laws-lois.justice.gc.ca/eng/regulations/SOR-2002-156/20170101/P1TT3xt3.html , read on 2026-09-13). Not listed in the document's table of authorities.	Read by the system on 2026-09-13 at https://laws-lois.justice.gc.ca/eng/regulations/SOR-2002-156/page-4.html (Justice Laws Website).

The method, step by step

- 1. The list.** Every authority in the table of authorities, and every citation in the text the table missed, was listed with the paragraphs that cite it, read off the document's own table, footnotes and quotations before any source was opened.
- 2. The source, opened.** The system opened each authority one page at a time, the way a clerk would: the court's own decisions site first, because it is the source of record; then the legislature's consolidation; then CanLII, the public database where a clerk would also start. Where a site refused a plain read, a person opened the page in a browser and the row says who read it and when. The page read and the date are printed on every row.
- 3. The citation, matched.** The case name, court, year and citation on the page were compared with the document's citation, and the style of cause was copied from the court's own page. A mismatch that changes which decision is meant is flagged with the corrected form; a difference in citation form the document copied from the court's own reasons is a remark. A citation that could not be found anywhere public is marked unverified, never guessed, and the row says where the authority lives.
- 4. The passage, read.** The paragraphs citing the authority were read, the pinpoint the document gives was found on the source page, and the proposition was tested against the words there. Where the words carry it only with a qualification the document drops, that is reported as overstated and both texts are quoted, unless the document sets out the qualifying text elsewhere, in which case the row carries a remark naming both paragraphs. The argument itself is never graded.
- 5. Quotations, word for word.** Every passage in quotation marks was compared with the source text at the place the footnote sends the reader, where the system read the source. A difference that changes meaning, or a quotation sent to the wrong case or paragraph, is flagged and both versions are shown. A row read from a person's report says not compared at source.
- 6. History, on three levels.** First, the appellate history of every decision below the final court, on the court's site or the public database's history panel. Second, one search per authority for a later decision that overrules or restates the point, and for an authority from another jurisdiction one line on how it stands there. Third, the noting-up on a citator, on the firm's own subscription, which is the lawyer's.

7. The results. Cleared means the authority exists as cited and the passage carries the point; the citator noting-up has not been run. A later decision that displaces the point the document relies on is flagged as changed since the filing; a later decision, an amendment or a different standing elsewhere that leaves the point standing is a remark on a cleared row. Flagged names one of six reasons, printed on the card: not found, does not carry the point, overstated, misquoted, changed since the filing, citation error. Unverified means no public copy was reached and the row says what was tried and where the authority lives. The judgment appealed from is reported in the header, never as a flag.

8. What was not done. No opinion on the argument, no change to the document, no subscription service. The sources were read as they stood on the date above; a change after the filing is reported as a change, not as an error of the author.

This run. Each public source was read one page at a time, a person read pages that needed a browser, the document footnotes were reconciled with the table, and history reached appellate history plus one public search, with the subscription citator left open.

Checked on 2026-09-13, against the sources as they stood that day. Nothing in the document was changed.

Draft for your review, not for sending. A lawyer reviews and decides.

30 authorities checked. 26 cleared. 2 flagged for your attention. 2 could not be verified.